

Court No. - 3

Case :- WRIT - C No. - 32930 of 2023

Petitioner :- Shani Yadav

Respondent :- U.P. Power Corporation Limited And Another

Counsel for Petitioner :- Sanjay Kumar Srivastav

Counsel for Respondent :- Baleshwar Chaturvedi, Krishna Agarawal

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Contention of the learned counsel for the petitioner is that none of the provisions as have been provided in Clause 8.1 of the U.P. Electricity Supply Code, 2005, was followed by the Electricity Department before passing the order dated 11.8.2023.

Learned counsel for the Electricity Department may take instructions in the matter and also file a definite counter affidavit to inform the Court as to how the figure of Rs. 9,19,826/- has been arrived at. The method by which the calculation was done be also provided by means of an affidavit of the Executive Engineer, the respondent no.2.

Place this petition as fresh on 7.12.2023.

Till the next date of listing, no coercive action shall be taken against the petitioner.

Order Date :- 7.11.2023

PK

(Manoj Bajaj,J.) (Siddhartha Varma,J.)

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Hon'ble Syed Qamar Hasan Rizvi, J.

1. Sri Ashutosh Dwivedi, holding brief of Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department states that the petitioner has settled the matter as per the scheme floated by the Government vide Government Order dated 04.11.2023.
2. Under such circumstances, no further order is required to be passed.
3. The writ petition is, accordingly, dismissed.

Order Date :- 7.12.2023

Prajapati

(Syed Qamar Hasan Rizvi, J) (Siddhartha Varma, J)